

		1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) Defendant School District asserts that the court should not grant leave to amend in light of Plaintiff's concession as to the to the 3rd, 5th, 6th, and 7th Causes of Action. However, Plaintiff did not concede that these claims could not be amended. Further, this is the first time that the court has sustained a demurrer to these causes of action. Therefore, the court will grant leave to amend as to the to the 3rd, 5th, 6th, and 7th Causes of Action. Defendant School District shall give notice of this ruling.
2	Escamilla vs. Suchard 30-2022-01282888	<u>Motion for Leave to Amend</u> Defendant Talmor Suchard's Motion for Leave to File First Amended Answer is GRANTED. Defendant Talmor Suchard shall file and serve the First Amended Answer by September 27, 2023. Defendant Talmor Suchard moves for leave to file a First Amended Answer in this action. <u>Standard for Leave to Amend</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.

		(Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend" (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530, citations and quotations omitted.) As the Court of Appeal has explained: [T]rial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory – for example, an easement as opposed to a fee – no prejudice can result. (<i>City of Stanton v. Cox</i> (1989) 207 Cal.App.3d 1557, 1563.) With respect to the first requirement, "[t]he basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded." (<i>Union Bank v. Wendland</i> (1976) 54 Cal.App.3d 393, 400-401.) In other words, "[t]he power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant." (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) Prejudice that may support denying amendment includes "delay in trial, loss of critical evidence, or added costs of preparation." (<i>Solit v. Tokai Bank,</i>
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		<i>Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) However, it is "an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048.) It is also an abuse of discretion to refuse amendment where that "results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense." (<i>Morgan v. Superior Court, supra</i>, 172 Cal.App.2d at p. 530.) This is true even if leave to amend is sought as late as the time of trial or even during trial. (See <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564-565; <i>Rainer v. Community Memorial Hosp.</i> (1971) 18 Cal.App.3d 240, 251-256.) Thus, "[i]n the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial." (<i>Honig v. Financial Corp. of America</i> (1992) 6 Cal.App.4th 960, 965.) Defendant's current counsel explains that, once he was retained as counsel, it became clear the answer filed by Defendant, who was then self-represented, was deficient. The original answer stated five separate facts, but it did not assert any affirmative defenses. The proposed First Amended Answer to Complaint, attached as Exhibit 1 to the Motion for Leave to File First Amended Answer, remedies this deficiency. Defendant's counsel was diligent in filing the instant motion. Defendant's counsel filed the Substitution of Attorney on June 15, 2023. Defendant's counsel then attempted to contact Plaintiff to meet and confer on this issue but was unsuccessful. On June 27, 2023, Defendant's counsel filed the instant motion. Further, the First Amended Answer consists only of a general denial and affirmative defenses. It does not seek to change Defendant's position on the underlying facts of the case. In addition, if the court were to deny the motion, Defendant would be unable to assert potentially meritorious defenses and there is no showing that Plaintiff would be prejudiced by this amendment. Plaintiff was served with the instant motion but has not filed an opposition. The failure to address
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		or oppose an issue in a motion constitutes a waiver on that issue. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288; see also <i>Wright v. Fireman's Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 ["it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion"].) Defendant shall give notice of this ruling.
3	Goodfield vs. Frahm 30-2019-01050047	<u>Motion for Sanctions</u> Defendants Daniel A. Frahm's and Claire Frahm's Motion for Sanctions Under Code of Civil Procedure 128.7 is DENIED. All requests for sanctions are DENIED. Defendants Daniel A. Frahm and Claire Frahm (Frahm Defendants) move for sanctions pursuant to Civil Procedure Code section 128.7 against Plaintiffs Bruce Goodfield and Kerry Goodfield. <u>Standard for Sanctions</u> By submitting to the court a pleading, petition, written notice of motion, or other similar paper, an attorney or a party not represented by counsel represents that: (1) [The document] is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation. (2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law. (3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery. (4) The denials of factual contentions are warranted on the evidence or, if specifically